

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 08/05/2026

Case #	Case Name	Tentative
01426855	Abley – Trust	Case: Abley – Trust 01426855 Calendar No: 1 Date: 08/05/26 MOTION FOR PROTECTIVE ORDER (ROA 60) Objectors Bert Abley and Taeko Abley (collectively, "Objectors") bring a Motion for Protective Order. (ROA 60.) The motion is opposed by Petitioner Nancy A. Smith ("Petitioner"). (ROA 157.) <u>Pertinent Facts</u> This case involves the Abley Revocable Inter-Vivos Trust (the "Trust"). Objectors are the settlors of the Trust and the parents of Petitioner. On 9/16/24, Petitioner filed a Petition seeking an order confirming Petitioner as Successor Trustee of the Trust. (ROA 2.) On 1/28/25, Objectors filed a Response and Objection to the Petition. (ROA 22.) Also on 1/28/25, Respondent Alyssa Taeko Smith ("Respondent") filed a Response and Objection to the Petition (ROA 19). Respondent is the daughter of Petitioner and granddaughter of Objectors. On 7/9/25, Respondent filed her own Petition to confirm the validity of several estate planning documents. (ROA 47.)

		In August 2025, Petitioner propounded discovery on each Objector. Specifically, each Objector was served with four Requests for Production of Documents; less than 36 Requests for Admission; and 156 Special Interrogatories. On 11/17/25, Objectors filed the instant Motion for Protective Order. (ROA 60.) Objectors seek an order exempting them from providing further responses to the subject discovery. <u>Motion for Protective Order</u> On receipt of interrogatories, a demand for production of documents, and/or requests for admission, a party may promptly move for a protective order. "The court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc. §§ 2030.090; 2031.060; 2033.080.) The burden is on the party seeking the protective order to show good cause for whatever order is sought. (<i>Fairmont Ins. Co. v. Sup.Ct.</i> (Stendell) (2000) 22 Cal.4th 245, 255.) "Good cause" requires specific facts demonstrating unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (<i>Goodman v. Citizens Life & Cas. Ins. Co.</i> (1967) 253 Cal.App.2d 807, 819.) The discovery burden is "undue" only if the inconvenience and expense of responding clearly outweighs the benefits likely to be obtained if the discovery is answered. (Code Civ. Proc. §§ 2019.030(a).) Objectors argue that good cause exists to issue a protective order exempting them from responding to any discovery because they are "elderly/infirm and unintentional parties" to this litigation. (ROA 60, 4:15-21.) Objectors further argue that it would be unreasonable for them to be required to respond to discovery because they are nearly 100 years old, and Bert is suffering from short term memory loss. Objectors state that responding to discovery would be an extremely time-consuming and painstaking process and would cause them significant stress. The court finds such arguments unpersuasive. Objectors opposed Petitioner's ex parte application to have a guardian ad litem appointed for Objectors. (ROA 88.) In the opposition to the ex parte application, Objectors argued as follows: "The fact that [Objectors] are elderly and require
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		assistance with their daily living certainly does not equate to legal incapacity to participate with their counsel's assistance in the pending litigation." ROA 88, 5:25.) In the same opposition to the ex parte applications (ROA 88), Objectors reference the instant discovery dispute and the instant Motion for Protective Order. In ruling on the ex parte application, the court made no finding as to the subject discovery. Rather, the court denied the ex parte application to appoint a GAL, finding no exigent circumstances and no evidence that Objectors lacked legal capacity. (ROA 121.) Objectors cannot have it both ways. Either Objectors have capacity to participate in the litigation with assistance from their counsel or they do not. Participation in litigation includes participation in pretrial discovery. A GAL would have authority to respond to and verify discovery on behalf of Objectors. (See <i>Regency Health Services, Inc. v. Superior Court</i> (1998) 64 Cal.App.4th 1496.) Without a GAL, Objectors must respond to discovery and verify the responses themselves. But the court cannot simply exempt a party from all discovery. In support of this motion, Objectors make the conclusory statement that the burden of the subject discovery is incommensurate with the "result sought" because Petitioner could obtain the information from other sources, such as the estate planning attorneys who drafted the subject estate documents or the Objectors' treating physicians. (ROA 60, 6:6-12.) However, Objectors do not point to any particular interrogatory or request that is burdensome or that seeks information that could be more readily obtained elsewhere. In the process of meeting and conferring, counsel for Petitioner stated that they are "willing to meet and confer in good faith regarding any specific requests [Objectors] contend are objectionable or unduly burdensome." Instead, Objectors have moved for a protective order that exempts them from responding to any discovery at all due to their physical, mental, and emotional frailties. Objectors elected to file an Objection to Petitioner's Petition, thereby making themselves parties to the instant litigation and subject to written discovery under the Discovery Act. The court is required to consider the Objection and any evidence pertaining to it. (Prob. Code § 1046.) Objectors cannot request that the court consider their Objection to the Petition and simultaneously request that they be protected from the burden of having to provide any evidence in support of their Objection.
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		To be clear: The court does not doubt that responding to discovery (of any type or quantity) will be particularly difficult and stressful for Objectors given their advanced age and consequent infirmities. However, Objectors have refused the appointment of a GAL; they have not requested any specific accommodations; they have not requested to limit the amount of discovery; and they have not pointed to any particular discovery request as unduly burdensome. In short, Objectors have not met their burden of showing good cause for a protective order that exempts them from responding to discovery altogether. Based on the foregoing, Objectors' motion for protective is DENIED. <u>No Order Compelling Further Responses</u> Objectors state that prior to filing this motion, they timely served "blanket objections" to the subject discovery. In her Opposition to this motion, Petitioner argues that certain objections made (e.g., on the grounds of relevancy, formation, and privilege) lack merit. Neither Objectors nor Petitioner provided the court with a copy of Objectors' discovery responses. To the extent Objectors objected to any interrogatory or request on the grounds that any and all written discovery propounded on them is overly burdensome in light of their advanced age, then such objection lacks merit for reasons stated hereinabove. However, the court makes no finding as to the merits of any other objection made in response to any particular interrogatory or request. To obtain an order compelling further responses, Petitioner must meet and confer and file a motion. Please note: Effective 1/1/26, meeting and conferring regarding discovery must be conducted in person, by telephone, or by videoconference. (Code Civ. Proc. §§ 2016.040 and 2023.010(i).) Counsel for Petitioner is ordered to serve notice of ruling on this motion.
01004237	Griffin – Probate	TENTATIVE RULING Case: Griffin – Probate 01004237

Calendar No: 2

Date: 08/05/26

MOTION TO ENFORCE SETTLEMENT AGREEMENT (ROA 165)

Before the court is a motion by Adan Gama Puffelis, in propria persona, for an order to enforce the settlement agreement pursuant to Code of Civil Procedure section 664.6.

The court notes that there is no proof of service of this motion, and no opposition has been filed. There is a Fed Ex receipt attached to the end of the motion, but it does not reflect what was mailed inside the package or to whom the package was mailed. The motion could be denied on such basis alone.

Probate Code section 664.6 provides, as follows:

"If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."

Code of Civil Procedure section 664.6 allows a party to obtain a judgment containing all material terms of a settlement agreement not yet fully performed by the parties. (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1185; *Kilpatrick v. Beebe* (1990) 219 Cal.App.3d 1527, 1529 [Section 664.6 "do[es] nothing more than provide a streamlined method for reducing a stipulated settlement to judgment."].)

Here, there appears to be no reason to enter a judgment based on the settlement agreement, as it was already made a court order. (ROA 125.) Specifically, the parties agreed in writing that Mr. Puffelis would resign as Administrator and that Lois Lee Meyer would be appointed as Executor. Ms. Meyer filed a Petition for Approval of Settlement Agreement. (ROA 91.) On 9/14/22, the court approved the Petition for Approval of Settlement Agreement and appointed Ms. Meyer as Executor. (ROA 125.) Letters appointing Ms. Meyer were issued on 9/30/22. (ROA 135.) Thus, there is no part of the settlement agreement that remains to be enforced.

In the instant motion, Mr. Puffelis states that Dusty West, who is a party to the settlement agreement, is interfering with Ms. Meyer's administration of the estate. He claims that Ms. West is isolating Ms. Meyer and unduly influencing Ms. Meyer. He further claims that Ms. West has wrongfully taken

		possession of estate property. Mr. Puffelis is also requesting an accounting. Orders addressing these concerns must be sought by petition, not motion. (See Probate Code §§ 850 and 17200 and Welfare and Institutions Code sections 15600 et seq.) For the foregoing reasons, the motion is denied as procedurally defective. This ruling is made without prejudice to Mr. Puffelis's right to seek the relief requested in a procedurally appropriate manner.
01094693	Schwarz - Probate	TENTATIVE RULING Case: Schwarz - Probate 01094693 Calendar No: 3 Date: 08/05/26 MOTION FOR JUDGMENT ON BOND (ROA 163) Travelers Casualty and Surety Bond Company of America ("Travelers") moves for judgment against Administrator Maximillian Schwarz ("Administrator"), the former administrator of the Estate of Jon Michael Schwarz in the amount of \$80,000.00, pursuant to Code of Civil Procedure sections 882 and 883. Code of Civil Procedure section 882(b) provides the legal basis for the requested judgment. It states as follows: If two or more judgment debtors are jointly liable on a money judgment: (b) If the judgment is based upon an obligation of one judgment debtor as surety for another and the surety satisfies the judgment or any part thereof, whether voluntarily or through enforcement procedures, the surety may compel repayment from the principal. Code of Civil Procedure section 883 provides the procedural mechanism for obtaining the judgment requested. It states as follows: (a) A judgment debtor entitled to compel contribution or repayment pursuant to this chapter may apply on noticed motion to the court that entered the judgment for an order determining liability for contribution or repayment. The application shall be made at any time before the judgment is satisfied in

		full or within 30 days thereafter. (b) The order determining liability for contribution or repayment entitles the judgment debtor to the benefit of the judgment to enforce the liability, including every remedy that the judgment creditor has against the persons liable, to the extent of the liability. (c) Nothing in this section limits any other remedy that a judgment debtor entitled to contribution or repayment may have. Here, Travelers posted a surety bond in the amount of \$80,000.00 on behalf of Administrator (Bond No. 107415518). On 2/7/24, the court issued a Judgment for Surcharge against Administrator in the amount of \$159,297.11. (ROA 109.) On 11/5/25, Travelers sent a check for \$80,000.00 to Successor Administrator Lawrence Anthony Hempen, PPF. The moving papers do not state that the check cleared, and no receipt has been filed. This motion is unopposed despite proof of service to Administrator and Successor Administrator. The court is inclined to issue the following orders upon assurance that the check from Travelers in the amount of \$80,000.00 has cleared. 1. Judgment is entered in favor of Travelers and against Maximillian Schwarz in the sum of \$80,000; 2. The Surcharge Judgment against Maximillian Schwarz is satisfied in the amount of \$80,000; and 3. Travelers probate bond numbered 107415518 is hereby cancelled and exonerated, with prejudice. Travelers shall prepare, file, and serve a Proposed Judgment. [Motion Type]
01426688	Sanburg – Trust	TENTATIVE RULING Case: Sanburg – Trust 01426688 Calendar No: 6 Date: 08/05/26 MOTION TO COMPEL RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS (ROA 202)

		On 12/1/25, Petitioner Paula Sanburg Ruby ("Petitioner") filed the instant motion to compel Respondent Phil Keribs ("Respondent") to respond to a request for production of documents. (ROA 202.) In opposition to this motion, Respondent argues that he was not a party to the action at the time the discovery was propounded. (ROA 288.) The discovery was propounded in October 2025. Respondent became a party to this proceeding upon the filing of the Third Amended Petition on 6/18/26. (ROA 262.) The prior petitions only named Mary Kerbis as a Respondent. (ROAs 2, 12, and 37.) A demand for production of documents pursuant to Code of Civil Procedure section 2031.010 may only be propounded on a party to the litigation. It is clear that Petitioner understood that Respondent was not yet a party, as she had filed a motion for leave to file the Third Amended Petition to add Respondent as a party. (ROA 158.) In Reply, Petitioner argues that the court should evaluate this motion in light of the "full procedural history." Petitioner argues that the court can resolve the discovery dispute on the merits because she was in the process of having Respondent added as a party at the time the discovery was propounded and Respondent has since been added as a party. Such argument is erroneous. Respondent was not added as a party to the action until several months after the discovery responses would have been due. Thus, Respondent had no obligation to respond to the discovery. The court cannot retroactively impose discovery obligations on a person who later becomes a party. Petitioner also argues in reply that her only objective was to obtain trust-related information from Respondent as a co-trustee. It is true that a beneficiary may request information about a trust from a trustee. (Prob. Code § 16061.) If the trustee fails to provide the information, the beneficiary may file a petition pursuant to Probate Code section 17200 for an order requiring the information to be provided. However, Petitioner did not simply request information from Respondent pursuant to Probate Code section 16061. As clearly reflected in the accompanying cover letter, Petitioner propounded a formal document demand pursuant to Code of Civil Procedure section 2031.010 (ROA 202, Ex. D), and she filed the instant motion to compel pursuant to Code of Civil Procedure section 2031.300 - all before Respondent was made a party to the action. Finally, Petitioner argues that sanctions are not warranted
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		because this is merely a procedural dispute, and she has not acted in bad faith. The court does not find such arguments persuasive. "Using a discovery method in a manner that does not comply with its specified procedures" is a misuse of the discovery process warranting sanctions. (Code Civ. Proc. § 2023.010(b).) Moreover, there is no "good faith exception" to the sanctions required by Code of Civil Procedure section 2031.300(c). The court finds that the motion was made without substantial justification (i.e., without basis in law or fact) and finds no other circumstances that would make the imposition of sanctions unjust. Based on the foregoing, the motion to compel is DENIED. The court imposes sanctions against Petitioner in the amount of \$2,452.50 for the attorney's fees incurred by Respondent in opposing this motion. Petitioner shall pay said amount to Law Stein Anderson, LLP within 30 days of notice of this ruling, extended for method of service, or by any further date as agreed upon by the parties in writing. Counsel for Respondent is ordered to file and serve a Notice of Ruling.
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